

Neutral Citations

2006 INSC 420

Equivalent Citations

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Priya Patel v. State Of M.P And Another

Supreme Court Of India (Jul 12, 2006)

CASE NO.

Criminal Appeal No. 754 of 2006, decided on July 12, 2006

DISPOSITION

ALLOWED

JUDGES

- Dr. Justice Arijit Pasayat
- Justice S.H. Kapadia

ATTORNEY

- Ms Rachna Gupta and Dr. Indra Pratap Singh, Advocates, for the Appellant;
- C.D Singh, Ms Minakshi Sharma, Ms Kiran Suvarna and Dhruvad Kashyap, Advocates, for the Respondents.

SUMMARY**Factual and Procedural Background**

The prosecutrix, after attending a sports meet, arrived at Sagar railway station while suffering from fever. She was approached by Bhanu Pratap Patel, who claimed that her father had sent him to pick her up. Trusting the representation, she accompanied him to his house, where he allegedly raped her. During the assault, the appellant—Patel's wife—entered the room. Instead of assisting the prosecutrix, the appellant allegedly slapped her, shut the door, and left.

Following the complaint, police filed a charge-sheet. Bhanu Pratap Patel was charged under Sections 323 and 376 IPC, while the appellant was charged under Sections 323 and 376(2)(g) IPC (gang *rape*). The appellant's revision petition before the Madhya Pradesh High Court challenging the gang-*rape* charge was dismissed. She then appealed to the

Supreme Court.

Legal Issues Presented

1. Whether a woman can be prosecuted for the offence of gang *rape* under Section 376(2)(g) IPC in light of Sections 375 and 376 IPC.
2. Consequently, whether the charge framed against the appellant under Section 376(2)(g) IPC was legally sustainable.

Arguments of the Parties

Appellant's Arguments

- Sections 375 and 376 IPC contemplate *rape* as an act that can be committed only by a man; therefore, a woman cannot be charged with *rape* or gang *rape*.
- Explanation 1 to Section 376(2) IPC does not extend criminal liability for gang *rape* to women.

State's Arguments

- Supported the High Court's view that a woman facilitating *rape* falls within Explanation 1 to Section 376(2) IPC and may be liable for gang *rape*.
- In the alternative, asserted that the appellant could at least be prosecuted for abetment of *rape*.

Table of Precedents Cited

No precedents were cited in the provided opinion.

Court's Reasoning and Analysis

The Court examined the statutory language of Sections 375 and 376 IPC. Section 375 explicitly states that “a *man* is said to commit ‘*rape*’,” limiting the principal offence to male perpetrators. Section 376(2)(g) enhances punishment for “whoever commits gang *rape*,” and Explanation 1 deems each participant in a group acting with a common intention to *rape* as having committed the offence.

The Court reasoned that the phrase “common intention” in Explanation 1 must relate to an intention to commit *rape*. Because a woman cannot physiologically or legally commit *rape*, she cannot possess the requisite intention contemplated by the provision. Therefore, the deeming fiction in Explanation 1 cannot be stretched to render a woman liable for gang *rape*.

Accordingly, the charge under Section 376(2)(g) IPC against the appellant was unsustainable. The Court left open the question of whether she could be charged with abetment, noting that neither the trial court nor the High Court had addressed that point.

Holding and Implications

The Supreme Court allowed the appeal to the extent that the charge of gang *rape* under Section 376(2)(g) IPC against the appellant was quashed.

Implications: The decision clarifies that women cannot be prosecuted for *rape* or gang *rape* under Sections 375 and 376 IPC. The matter is remitted for consideration of possible liability for abetment, but the Court expressed no opinion on that issue. No new precedent was set beyond this clarification of statutory interpretation.

JUDGMENT

Arijit Pasayat, J.— Leave granted.

2. Can a lady be prosecuted for gang *rape* is the interesting question involved in this appeal.

3. Challenge in this appeal is to the order passed by a learned Single Judge of the Madhya Pradesh High Court holding that the charge framed against the appellant under Sections 323 and 376(2)(g) of the Penal Code, 1860 (in short “IPC”) is in order.

4. Background facts in a nutshell are as follows:

A complaint was lodged by the prosecutrix alleging that she was returning by Utkal Express after attending a sports meet. When she reached her destination at Sagar, the accused, Bhanu Pratap Patel (husband of the accused-appellant) met her at the railway station and told her that her father has asked him to pick her up from the railway station. Since the prosecutrix was suffering from fever, she accompanied accused Bhanu Pratap Patel to his house. He committed *rape* on her. When commission of *rape* was going on, his wife, the present appellant reached there. The prosecutrix requested the appellant to save her. Instead of saving her, the appellant slapped her, closed the door of the house and left the place of incident. On the basis of the complaint lodged, investigation was undertaken and charge-sheet was filed. While the accused Bhanu Pratap Patel was charged for offences punishable under Sections 323 and 376 IPC the appellant, as noted above, was charged for commission of offences punishable under Sections 323 and 376(2)(g) IPC. The revision filed before the High Court questioned the legality of the charge framed so far as the appellant is concerned, relating to Section 376(2)(g) IPC. It was contended that a woman cannot be charged for commission of the offence of *rape*. The High Court was of the view that though a woman cannot commit *rape*, but if a woman facilitates the act of *rape*, Explanation I to Section 376(2) comes into operation and she can be prosecuted for “gang *rape*”.

5. According to the learned counsel for the appellant the High Court has clearly missed the essence of Sections 375 and 376 IPC. It was submitted that as the woman cannot commit *rape*, she cannot certainly be convicted for commission of “gang *rape*”, and Explanation I to Section 376(2) IPC has no relevance and/or application.

6. Per contra, the learned counsel for the State supported the order. Additionally, it was submitted that even if for the sake of argument it is conceded that the appellant cannot be prosecuted for commission of offence punishable under Section 376(2) (g), she can certainly be prosecuted for commission of the offence of abetment.

7. In order to appreciate the rival submissions Sections 375 and 376 need to be noted. They, so far as relevant, read as follows:

“375. *Rape* .—A man is said to commit ‘ *rape* ’ who, except in the case hereinafter excepted, has sexual intercourse with a woman under circumstances falling under any of the six following descriptions—

First.—Against her will.

Secondly.—Without her consent.

Thirdly.—With her consent, when her consent has been obtained by putting her or any person in whom she is interested in fear of death or of hurt.

Fourthly.—With her consent, when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.

Fifthly. — With her consent, when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.

Sixthly.—With or without her consent, when she is under sixteen years of age.

Explanation.—Penetration is sufficient to constitute the sexual intercourse necessary to the offence of *rape* .

Exception.—Sexual intercourse by a man with his own wife, the wife not being under fifteen years of age, is not *rape* .

376. Punishment for *rape* .—(1) Whoever, except in the cases provided for by sub-section (2), commits *rape* shall be punished with imprisonment of either description for a term which shall not be less than seven years but which may be for life or for a term which may extend to ten years and shall also be liable to fine unless the women raped is his own wife and is not under twelve years of age, in which case, he shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than seven years.

(2) Whoever,—

(g) commits gang *rape* ,

shall be punished with rigorous imprisonment for a term which shall not be less than ten years but which may be for life and shall also be liable to fine:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term of less than ten years.

Explanation 1.—Where a woman is raped by one or more in a group of persons acting in furtherance of their common intention, each of the persons shall be deemed to have committed gang *rape* within the meaning of this sub-section.

8. A bare reading of Section 375 makes the position clear that *rape* can be committed only by a man. The section itself provides as to when a man can be said to have committed *rape* . Section 376(2) makes certain categories of serious cases of *rape* as enumerated therein attract more severe punishment. One of them relates to “gang *rape* ”. The language of sub-section (2)(g) provides that whoever commits “gang *rape* ” shall be punished, etc. The Explanation only clarifies that when a woman is raped by one or more in a group of persons acting in furtherance of their common intention, each such person shall be deemed to have committed gang *rape* within this sub-section (2). That cannot make a woman guilty of committing *rape* . This is conceptually inconceivable. The Explanation only indicates that when one or more persons act in furtherance of their common intention to *rape* a woman, each person of the group shall be deemed to have committed gang *rape* . By operation of the deeming provision, a person who has not actually committed *rape* is deemed to have committed *rape* even if only one of the group in furtherance of the common intention has committed *rape* . “Common intention” is dealt with in Section 34 IPC and provides that when a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it was done by him alone. “Common intention” denotes action in concert and necessarily postulates a pre-arranged plan, a prior meeting of minds and an element of participation in action. The acts may be different and vary in character, but must be actuated by the same common intention, which is different from the same intention or similar intention. The sine qua non for bringing in application of Section 34 IPC is that the act must be done in furtherance of the common intention to do a criminal act. The expression “in furtherance of their common intention” as appearing in the Explanation to Section 376(2) relates to the intention to commit *rape* . A woman cannot be said to have an intention to commit *rape* . Therefore, the counsel for the appellant is right in her submission that the appellant cannot be prosecuted for alleged commission of the offence punishable under Section 376(2)(g).

9. The residual question is whether she can be charged for abetment. This is an aspect which has not been dealt with by the trial court or the High Court. If in law, it is permissible and the facts warrant such a course to be adopted, it is for the court concerned to act in accordance with law. We express no opinion in that regard.

10. The appeal is allowed to the aforesaid extent.